



the community participation for management. The paradigm shift in administration and management to the community based authorities, was by the enactment and implementation of the 'Nagaland Communitisation of Public Institutions And Services Act, 2002'. The Chief Minister, Neiphiu Rio termed this Act as the "Bottom-up Approach with Community Participation towards Achievement of Tangible Results" in his message to 'The First Year of Communitisation of Elementary Education'.

The Communitisation Act of Nagaland which has been awarded the prestigious UN's 'Public Services Award 2008' is an Act in 12 Articles, the text of which is as follows:

NAGALAND COMMUNITISATION OF PUBLIC INSTITUTIONS AND SERVICES ACT, 2002

(Act No. 2 of 2002)

AN ACT

Whereas it is expedient to provide for empowerment of the community and delegation of powers and functions of the State Government to the local authorities by way of participation of the community in matters connected with the management of local public utilities, public services and the activities of the State Government connected with education, water supply, roads, forest, power, sanitation, health and other welfare and development schemes and also to provide for promotion of community based schemes incidental thereto:-

It is hereby enacted in the Fifty-second year of the Republic of India as follows:

1. Short title, Extent and Commencement:

- (1) This Act may be called the Nagaland Communitisation of Public Institutions and Services Act, 2002.

- (2) It shall extend to the whole of Nagaland.

- (3) It shall come into force on such date or dates as the State Government, may by notification, appoint for different parts of the State and for different sectors of public services.

2. Definitions:

- (1) Appellate authority means the appellate authority prescribed under section 8.
- (2) Authorities means the authorities as may be called Board or Committee or any other nomenclature.
- (3) Fund means a fund established for the authorities under section 7.
- (4) Rules means the rules made under section 11.

3. Constitution and Declaration of Local Authorities:

The State Government, by notification, constitute authorities as may be called Board or Committee or any other nomenclature or declare any of the existing authorities established under any law for the time being in force for a village or an area covering two or more villages to exercise the powers and to discharge the functions as provided under this Act.

4. Delegation of Powers and Functions:

- (1) The State Government or its authorities may, by notification, delegate the powers and functions of the State Government or its authorities, as may be specified, with respect to the management and operation of any of the public utilities and public services or the activities of the State Government connected with education, water supply, roads, forests, power, sanitation, health and other welfare and development schemes to the authorities constituted or declared under section 3 of this Act.